

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Angel Riddle	Team: Squad #05	CCRB Case #: 202303687	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Tuesday, 04/25/2023 7:07 PM	Location of Incident: Outside of 774 East 149th Street	18 Mo. SOL 10/25/2024	Precinct: 40		
Date/Time CV Reported Fri, 04/28/2023 8:01 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 04/28/2023 8:01 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DTS Jayther Liriano	07542	964614	PSA 7
2. SGT Rafael Pimentel	01369	951060	PSA 7
3. PO Brandon Gonzalez	24845	950515	PSA 7

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Michael Visintin	14001	953536	PSA 7
2. PO Sharday Harris	20722	958684	PSA 7

Officer(s)	Allegation	Investigator Recommendation
A . SGT Rafael Pimentel	Abuse: Sergeant Rafael Pimentel stopped an individual.	A . Substantiated
B . SGT Rafael Pimentel	Abuse: Sergeant Rafael Pimentel frisked an individual.	B . Substantiated
C . SGT Rafael Pimentel	Abuse: Sergeant Rafael Pimentel failed to provide an individual with a business card.	C . Substantiated
D . PO Brandon Gonzalez	Abuse: Police Officer Brandon Gonzalez stopped an individual.	D . Within NYPD Guidelines
E . PO Brandon Gonzalez	Abuse: Police Officer Brandon Gonzalez frisked an individual.	E . Within NYPD Guidelines
F . PO Brandon Gonzalez	Abuse: Police Officer Brandon Gonzalez searched an individual.	F . Within NYPD Guidelines
G . PO Brandon Gonzalez	Abuse: Police Officer Brandon Gonzalez failed to explain to an individual the reason for a law enforcement activity.	G . Substantiated
H . DTS Jayther Liriano	Abuse: Detective Jayther Liriano stopped an individual.	H . Substantiated
I . DTS Jayther Liriano	Abuse: Detective Jayther Liriano frisked an individual.	I . Substantiated
J . DTS Jayther Liriano	Discourtesy: Detective Jayther Liriano gestured discourteously toward an individual.	J . Substantiated
K . DTS Jayther Liriano	Off. Language: Detective Jayther Liriano made remarks to An individual based upon the gender of an individual.	K . Substantiated
L . DTS Jayther Liriano	Discourtesy: Detective Jayther Liriano spoke discourteously to an individual.	L . Substantiated

Officer(s)	Allegation	Investigator Recommendation
M . DTS Jayther Liriano	Abuse: Detective Jayther Liriano failed to provide an individual with a business card.	M . Substantiated
§ 87(2)(g), § 87(4-b)		

Case Summary

On April 28, 2023, § 87(2)(b) and § 87(2)(b) filed separate complaints about this incident via the CCRB's website. On April 28, 2023, Instagram user § 87(2)(b) sent the CCRB footage of this incident via direct message on Instagram. On May 1, 2023, Instagram user § 87(2)(b) sent the CCRB footage of this incident via direct message on Instagram. On May 3, 2023, § 87(2)(b) filed a duplicative complaint about this incident via the CCRB's website. None of these complainants personally witnessed the incident. This complaint was marked "sensitive" due to the social media exposure of the video clips from the incident.

On April 25, 2023, at 7:07 p.m., outside of 774 East 149th Street in the Bronx, Sgt. Rafael Pimentel, PO Brandon Gonzalez, and Det. Jayther Liriano, all of PSA 7, approached three unidentified male civilians. Sgt. Pimentel stopped and frisked a man who was wearing a black hoodie and blue sweatpants and left the location without offering him a business card (**Allegations A-C: Abuse of Authority, substantiated**). PO Gonzalez stopped, frisked, and searched a man who was wearing a grey hoodie and black sweatpants (**Allegations D-F: Abuse of Authority, within NYPD guidelines**). PO Gonzalez did not explain the reason for the stop (**Allegation G: Abuse of Authority, substantiated**). Det. Liriano stopped and frisked a man who was wearing a black hoodie and black pants (**Allegations H-I: Abuse of Authority, substantiated**). After conducting his investigation, Det. Liriano threw up various gang signs with his hands and said, "Dropping whatever you are bitch" (**Allegation J: Discourtesy, substantiated; Allegation K: Offensive Language, substantiated; Allegation L: Discourtesy, substantiated**). Det. Liriano then left the incident location without offering the man he stopped a business card (**Allegation M: Abuse of Authority, substantiated**). § 87(2)(g), § 87(4-b)

§ 87(2)(b) The incident did not result in any summonses or arrests.

The CCRB obtained various clips of civilian-captured video, the longest of which was uploaded by Instagram user § 87(2)(b) (**BR01**, summarized at **BR02**). The CCRB also obtained body-worn camera (BWC) footage from all responding officers (**BR03-05**, summarized at **BR06-08**). All references to video footage below refer to the time stamp in the video player, and not to any on-screen clock embedded in the footage itself.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Rafael Pimentel stopped an individual.

Allegation (B) Abuse of Authority: Sergeant Rafael Pimentel frisked an individual.

Allegation (D) Abuse of Authority: Police Officer Brandon Gonzalez stopped an individual.

Allegation (E) Abuse of Authority: Police Officer Brandon Gonzalez frisked an individual.

Allegation (F) Abuse of Authority: Police Officer Brandon Gonzalez searched an individual.

Allegation (H) Abuse of Authority: Detective Jayther Liriano stopped an individual.

Allegation (I) Abuse of Authority: Detective Jayther Liriano frisked an individual.

It is undisputed that Sgt. Pimentel stopped and frisked an unidentified man in a black hoodie, blue sweatpants, and white shoes. PO Gonzalez stopped, frisked, and searched an unidentified man in a grey hoodie, black sweatpants, and black shoes, and he briefly took a hammer from the man's person and returned it at the end of the incident. Det. Liriano stopped and frisked an unidentified man in a black coat, black hoodie, black sweatpants, and blue shoes.

NYPD documentation and video footage did not provide any information that would have allowed the investigation to identify or attempt to locate the victims of this complaint. The investigation

made contact attempts to Instagram user § 87(2)(b) who posted the longest video of the incident, as well as Instagram user § 87(2)(b) who may have been involved in the incident based upon comments he made on the video, but contact attempts were ultimately exhausted.

The officers testified to various observations about the victims that impacted their decision to stop them. All three officers testified to this area being a gang-prone location. None of the officers testified to having any prior knowledge of any of the men. While sitting in the driver's seat of a stationary unmarked police van, Det. Liriano (**BR10**) first observed the group about ten feet away. They were wearing "shiesty" facemasks and walking in a stacked formation, meaning in a single-file line, with about two or three feet of space in between each of them. The sun was still out and nothing blocked Det. Liriano's view of them. Det. Liriano's attention was immediately drawn to a man in all black who was looking from left to right and who seemed to be holding up a weighted object in his front right jacket pocket. PO Gonzalez (**BR09**) similarly testified that the three men were wearing hoodies with hoods up, walking in single file, looking from side to side, and keeping their hands in their pockets. One of the men wore a ski mask and one wore a medical mask that also covered his face. Sgt. Pimentel did not testify that the men's behavior as a group raised his suspicion or impacted his decision to stop one of them. He testified (**BR11**) that Det. Liriano called his attention to the group and said that it looked like one of them had "something" in his pocket. When he looked over to the group, Sgt. Pimentel's attention was drawn to a man in blue pants and a black hoodie, specifically because his front left pants pocket appeared to be significantly weighed down compared to his right pants pocket. Sgt. Pimentel could not recall if there were any bulges or anything noteworthy about the other men because his attention was focused on the man in the blue pants. When the officers drove over to the group, and were less than 10 feet away from them, Sgt. Pimentel's attention remained fixed on the elongated object in his front left pants pocket, which looked weighed down significantly in comparison to the right pocket. Sgt. Pimentel did not observe any additional bulges on his person. Sgt. Pimentel could not recall if he observed any bulges or anything noteworthy about the other two men.

Det. Liriano prepared a stop report (**BR12**) that has no mention of the group walking in a single-file line or anyone looking from side to side. Neither PO Gonzalez's memo book (**BR13**) nor the stop report he prepared (**BR14**) mention the men walking in a single-file line or having their hands in their pockets.

None of the video footage captures the behavior of the group prior to officers approaching them. Det. Liriano's BWC (**BR05**, beginning at 01:01), shows a group of three men standing on a sidewalk facing the officers directly. As the officers exit their vehicle and approach them, the men remain standing and do not attempt to get away or shield themselves from officers.

In Sgt. Pimentel's BWC (**BR03**, beginning at 01:20), Sgt. Pimentel first frisks the man's left pants pocket, around his crotch, then his right pants pocket. Sgt. Pimentel feels the left pants pocket a second time then pats around both of his ankles. Sgt. Pimentel testified that, as he neared the men, he got a better view of the bulge in the man's front left pants pocket, which he described as a circular bulge about four or five inches wide, sagging his pocket down about three inches lower than his right pants pocket. At the top of the pocket, Sgt. Pimentel observed a quarter inch of stainless steel sticking out of the pocket, in a shape that looked like a quarter. Sgt. Pimentel added that the size of the bulge and the stainless steel sticking out of the pocket was consistent with the shape and size of the "top of the slide of a firearm," which made him suspect that the man was carrying a firearm. Other than the bulge in the front left pants pocket, Sgt. Pimentel did not observe anything else that indicated that the man may have been concealing a firearm. Sgt. Pimentel frisked his front left pants pocket that had the heavy, circular bulge, and felt a large, heavy, circular object. Within seconds, Sgt. Pimentel was able to look in the man's pocket and saw that the object was a

marijuana grinder. Sgt. Pimentel did not have to remove the object from the pocket to see that it was a grinder because the object had a translucent lid that allowed him to see the teeth of the grinder. Sgt. Pimentel then proceeded to frisk the man's front right pants pocket, which he did because the man became combative during the initial frisk. Sgt. Pimentel explained that the man became combative by trying to push him away and tucking his arms to prevent Sgt. Pimentel from frisking him, all of which made him suspect that the man was trying to hide something. Sgt. Pimentel added that the man was moving his arms around, yelling profanities, and was recording the incident by placing his phone directly "in [Sgt. Pimentel's] face." Sgt. Pimentel prepared memo book entries and a stop report that were generally consistent with his testimony (**BR15-16**).

In PO Gonzalez's BWC (**BR04**, beginning at 01:12), PO Gonzalez frisks the right pants pocket of the man in the grey sweatshirt. PO Gonzalez lifts the hem of the hoodie to expose the man's waistband and removes a hammer in a plastic bag from the man's front right waistband area. PO Gonzalez asks the man for his ID and he tells PO Gonzalez that he does not have it with him. PO Gonzalez then returns the hammer to the man. PO Gonzalez testified (**BR09**) that he saw an elongated object protruding near the man's right hip, going down his right side of his sweatpants and up into his hoodie. Based on the shape of the bulge, the way it protruded from his pockets, and the elongated portion he could see, PO Gonzalez believed that the object was a firearm. PO Gonzalez patted the object and felt hard metal but was unsure what it was. He lifted the man's shirt to reveal that the object was a hammer tucked in his waistband. PO Gonzalez did not touch or enter any of the man's other pockets. The man did not prevent or attempt to prevent PO Gonzalez from frisking him and stood silently while recording PO Gonzalez on his phone. PO Gonzalez removed the hammer, asked the man why he had it in his pocket, and the man answered that it was for his uncle. PO Gonzalez then returned the hammer to the man. PO Gonzalez's stop report was generally consistent with his testimony regarding the waistband bulge (**BR14**).

Det. Liriano's BWC (**BR05**, beginning at 01:05) captures him approaching the man in black pants, a black hoodie, and black jacket and grabbing hold of an Arizona tea bottle his right jacket pocket. Det. Liriano then pats the outside of both of his jacket pockets, around his jacket, and both of his pants' pockets. Det. Liriano then frisks the man's crotch, his waistband, and feels around his front pants pockets a second time. The man does not do anything to prevent Det. Liriano from frisking him. Det. Liriano testified (**BR10**) that he approached the man who seemed to be holding up a weighted object in his front right jacket pocket. Det. Liriano believed the object was a gun, based on the bulge and on the fact that the man kept a hand in that pocket and had been swiveling his head around. The man took his hand out of the pocket, and the pocket fell a significant amount, indicating that he had been holding onto a heavy object. Det. Liriano noted that the man had an Arizona bottle in his right jacket pocket, so he frisked "behind the bottle." Det. Liriano could not recall if he saw any additional bulges or protrusions on the man. Det. Liriano could not determine what the bulge behind the Arizona bottle was from feeling it alone, but he decided not to put his hand into the pocket because it did not feel like a firearm. Det. Liriano guessed that the object may have been a cell phone. Det. Liriano then frisked the rest of the man's pockets, because the man might have transferred a firearm to a different pocket in the time between when Det. Liriano first saw him and when Det. Liriano began frisking him. Det. Liriano did not feel anything in the other pockets that might have been a firearm. Det. Liriano's stop report noted that he observed a rectangular-shaped object on the man, and that he "bladed his body and attempted to turn around." Reviewing the report did not refresh Det. Liriano's recollection of the shape of the bulge or whether the man bladed his body to avoid officers, but he testified that he must have seen those things during the incident if he put them in the report.

Absent additional evidence, the investigation was unable to determine whether the group was walking in a single-file line, looking from side to side, or if any of them had their hands in their

pockets prior to officers approaching them as Det. Liriano and PO Gonzalez claimed. Det. Liriano's claim in his stop report that the man he frisked bladed his body and attempted to turn around was not supported by the video evidence.

Officers may conduct a stop only when they have an individualized reasonable suspicion that the person has committed, is committing, or is about to commit a crime. The officers must have a particularized and objective basis for suspecting the person stopped of the criminal conduct. During these encounters, officers may frisk the person if at any point during the encounter they have reasonable suspicion that the person is armed and dangerous. Reasonable suspicion that a person is armed and dangerous may arise from the officer's observations or the facts and circumstances of the encounter including observation of something on the person that the officer reasonably suspects is a weapon. Where the frisk reveals an object that the officer reasonably suspects may be a weapon, the officer may search only those interior portions of the stopped person's clothing to remove the weapon. NYPD Patrol Guide Procedure 212-11 (BR17).

Unlike a bulge in a waistband, "a bulging jacket pocket is hardly indicative of criminality," and "could be caused by any number of innocuous objects." Such a bulge in a jacket pocket does not, on its own, constitute reasonable suspicion that a person is armed. *People v. Jones*, 164 A.D.3d 1363 (2nd Dept., 2018) (BR18).

§ 87(2)(g)

§ 87(2)(g)

Moreover, Sgt. Pimentel then proceeded to frisk the man's other pocket, groin, and ankles, purely because the man became "combative," § 87(2)(g) It is therefore recommended that **Allegations A-B** be closed as **substantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegations D-F** be closed as **within NYPD guidelines**.

§ 87(2)(g)

Det. Liriano went on to

frisk other parts of the man's body § 87(2)(g)

It is therefore recommended that **Allegations H-I** be closed as **substantiated**.

Allegation (J) Discourtesy: Detective Jayther Liriano gestured discourteously toward an individual.

Allegation (K) Offensive Language: Detective Jayther Liriano made remarks to an individual based upon the gender of an individual.

Allegation (L) Discourtesy: Detective Jayther Liriano spoke discourteously to an individual.

In cellphone footage uploaded to Instagram by user § 87(2)(b) (BR01, beginning at 00:25-00:30), Det. Liriano is captured displaying various gang signs with his hands. At 00:30, Det. Liriano states, "O, dropping the O," in reference to one of the signs he displays. Det. Liriano's BWC (BR05, beginning at 01:49) captures Det. Liriano telling the man in the black hoodie and blue sweatpants, in reference to the signs he is displaying, "Yeah, 'O,' dropping the 'O,' dropping whatever you are bitch."

During his CCRB interview, the investigator reviewed civilian footage with Det. Liriano going frame-by-frame. At 00:27, Det. Liriano explained that he was making a sign in which he was "pointing a gun to Ygz," indicating the sign for the YGz Killas gang. At 00:28, Det. Liriano displays a sign for the Bloodhound Brimz gang. At 00:29, Det. Liriano displays a sign for the OGz gang. Det. Liriano explained that he "threw up gang signs" because he wanted to determine to which gang or crew the three men belonged. Det. Liriano explained that he has found that often when someone who is in a gang or crew is confronted with certain gang signs, they will respond in different ways depending on their own gang or crew. Det. Liriano wanted to gather intelligence regarding who was coming into the area, because often gang members will go into rival territory and film themselves. These videos show them walking through housing developments associated with different gangs, taunting their rivals, and flashing guns, and they will post these videos on social media. Often these videos will result in violent retaliation, so it is Det. Liriano's responsibility to be aware of and stay ahead of any upcoming violent crimes. Other than attempting to ascertain the gang or crew with which the three men were associated, Det. Liriano had no additional reason for displaying gang signs. Det. Liriano believed that the group of men were gang members because they were coming from the direction of the § 87(2)(b) complex heading towards § 87(2)(b), in masks covering their face, walking "in a stack," with at least one of the men walking with his hands in his pockets, all of which led him to suspect that they may have been involved in gang activity. Det. Liriano explained that there are rivaling crews that operate out of the § 87(2)(b) and § 87(2)(b). Upon being presented with his own BWC capturing him first approaching the group and being asked if there was anything else he observed about the group that led him to believe they were involved in gang activity, Det. Liriano pointed out that one of the men was wearing blue sneakers and blue sweatpants, and he later learned that this individual was a Crips member. Det. Liriano confirmed that he was not aware of this individual being a Crips member at the time of the incident.

Det. Liriano could not recall if he or any officer present used the word "bitch" while interacting with civilians. Det. Liriano acknowledged hearing a voice captured by his BWC saying, "Dropping the O, dropping whatever you are bitch," but he was unable to determine if this was his own voice. Det. Liriano confirmed that although he testified to throwing up a gang sign for OGz, he could not say if the voice capturing referring to themselves "dropping the O" was his own. Det. Liriano then added that the voice may have been his and that he may have used the word "bitch" out of frustration, but he could not identify the voice as his own with any certainty.

Sgt. Pimentel and PO Gonzalez both testified that they had not seen Det. Liriano displaying gang signs during the incident. Sgt. Pimentel first learned of it a few days afterward when he independently came across a video on his personal social media. Sgt. Pimentel confirmed that, as Det. Liriano's supervisor, he did not find this behavior appropriate and that he personally gave him verbal instructions regarding this matter to ensure that it did not happen again. Sgt. Pimentel confirmed that Det. Liriano did not receive any official disciplinary action from anyone at the NYPD or any formalized training in response to this incident. Sgt. Pimentel did not find this behavior appropriate because it was not useful for gathering information and because he prefers to avoid adversarial confrontations with civilians. At no point has Sgt. Pimentel personally instructed officers to use gang signs to determine if someone is in a gang, nor has there been any discussion at PSA7 about this being used as a tactic. Sgt. Pimentel also denied hearing any officer use profanity during the incident. He could not tell whether the voice in the footage saying the word "bitch" belonged to either PO Gonzalez or Det. Liriano.

The video evidence clearly demonstrates that Det. Liriano was the officer who verbally referenced "dropping the O" and then used the word "bitch." Moreover, Det. Liriano did not deny doing so, and he eventually allowed that he might have made the remark out of frustration.

The NYPD's mission statement details that officers pledge to maintain a higher standard of integrity than is generally expected of others, respect the dignity of each individual, and to render their services with courtesy and civility (**BR19**). Officers are prohibited from "using discourteous or disrespectful remarks regarding another person's age, ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability." Officers are prohibited from knowingly associating with an organization reasonably believed to be engaged in, likely to engage in, or to have engaged in criminal activities NYPD Administrative Guide Procedure 304-06 (**BR20**).

§ 87(2)(g)

It is therefore recommended that **Allegation J** be closed as **substantiated**.

The video makes clear that Det. Liriano's use of the word "bitch" § 87(2)(g)

It is therefore recommended that **Allegations K-L** be closed as **substantiated**.

Allegation (C) Abuse of Authority: Sergeant Rafael Pimentel failed to provide an individual with a business card.

Allegation (M) Abuse of Authority: Detective Jayther Liriano failed to provide an individual with a business card.

Allegation (G) Abuse of Authority: Police Officer Brandon Gonzalez failed to explain to an individual the reason for a law enforcement activity.

Sgt. Pimentel's BWC (**BR03**, beginning at 01:24) captures him informing the man he frisked, "We suspect a weapon, that's what we do." At 01:47, Sgt. Pimentel reenters the vehicle. Det. Liriano's BWC (**BR05**, beginning at 01:19) captures him asking the man he frisked for his ID, which the man refuses to provide. Det. Liriano then tells him, "The way your pocket looked, it looks like you're concealing a weapon, alright?" The man responds that he only has a lighter and Det. Liriano replies

that he was simply explaining the reason for the stop. At 01:49, the footage captures the three civilians and PO Gonzalez still standing on the sidewalk as Det. Liriano returns to the van. There is no visible crowd. PO Gonzalez's BWC (**BR04**, beginning at 01:40) shows him asking the man he searched for his ID and the man responds that he is not carrying one. At 01:44, as the man in the black sweatshirt and blue sweatpants uses profanity with officers, PO Gonzalez asks the man he searched if he wants a business card and the man declines. At 01:44, PO Gonzalez returns the hammer to the man and then reenters his vehicle.

Sgt. Pimentel testified that although he was carrying business cards on this day, he did not offer a card to the man he frisked because the man in the blue pants was violent, aggressive, and arguing with the officers. When this man became "violent," a crowd of about 10-15 people leaving the surrounding businesses began to form as they stopped to watch what was happening. Nobody in the crowd attempted to involve themselves or interact with the men or the officers. Sgt. Pimentel explained that he was unable to offer the man a business card because he was being aggressive and not listening to him so they could not have a logical conversation, as the man only responded to what Sgt. Pimentel told him by hurling insults and profanity at him. When the crowd began to form, all three of the men were upset and yelling profanities at the officers, so Sgt. Pimentel returned to the vehicle and ordered PO Gonzalez and Det. Liriano to do the same. In his stop report, Sgt. Pimentel noted that he did not offer a business card due to exigent circumstances, namely that the individual was "very violent and angry."

PO Gonzalez testified, consistent with his BWC footage, that the man he stopped declined the offer of a business card. Before PO Gonzalez could explain the reason for the stop, the scene became chaotic and that the other two men became hostile and irate, which they expressed by yelling out profane remarks at the officers. PO Gonzalez could not recall what the men were saying other than them repeatedly yelling, "Suck my dick!" As a result of the "commotion," after being on scene for about a minute, PO Gonzalez decided to deescalate the situation by walking away and getting back inside his vehicle without engaging the men further. In his stop report, PO Gonzalez erroneously noted that he did not offer a business card because the "scene became hostile." PO Gonzalez's stop report also indicates that he explained the reason for the stop, which he does not do in the BWC footage.

Det. Liriano confirmed that he was required to offer a business card to the man he stopped, but he explained that there were "exigent circumstances" that prevented him from doing so. Specifically, the man in a black hoodie and blue sweatpants became agitated with the officers and began to repeatedly scream at the officers, "Suck my dick!" This prevented Det. Liriano from offering a business card because the man was yelling obscenities, creating a scene, and "riling up" the people who were leaving the surrounding businesses, who had begun to stop and watch the group. Det. Liriano could not say how many people stopped to watch, if they said anything to the officers or the three men, or if they otherwise attempted to involve themselves in what was happening. To avoid any further confrontation and prevent the situation from escalating, and because he was finished with his investigation, Det. Liriano decided to deescalate the situation by walking away without offering a card. Upon reviewing the stop report he prepared, specifically the portion that indicated that he *did* offer a business card, Det. Liriano explained that he must have checked this off by mistake as he previously acknowledged that he did not offer him a business card. The stop report does not indicate that there were any exigent circumstances that would have prevented Det. Liriano from offering a card.

Per the Right To Know Act, officers are required to proactively offer business cards to an individual they stop, frisk, or search, except in cases when a summons is issued or an arrest is made, or in which exigent circumstances are present (i.e., physical resistance, flight, imminent

danger of physical injury or damage to property, or other factors which make such procedure impractical). Officers must provide the individual with an explanation for the encounter, unless providing such information would impair a criminal investigation or exigent circumstances are present. NYC Administrative Code §14-174 (BR21); NYPD Administrative Guide 304-11 (BR22). The RTKA defines “law enforcement activity” as Level II questions, pedestrian stops, frisks, most vehicle stops at roadblocks and checkpoints, searches of person, vehicle, or home, and investigatory questioning of victims and witnesses to crimes. NYC Administrative Code §14-174(6)(2).

Based upon the video footage, which does not show any hostile crowd of bystanders nor any imminent danger of physical injury, § 87(2)(g)

It is therefore recommended that **Allegations C and M** be closed as **substantiated**. § 87(2)(g)

It is therefore recommended that **Allegation G** be closed as **substantiated**.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- There are no civilian CCRB histories because the investigation could not identify the victims.
- Sgt. Pimentel has been a member of the NYPD for 12 years and has been a subject in three additional complaints and 12 allegations, none of which have been substantiated.
 - § 87(2)(g)
 - § 87(2)(g)
 - Case 202308493 involves allegations of a stop, frisk, and question against Sgt. Pimentel and remains under investigation.
- PO Gonzalez has been a member of the NYPD for 12 years and has been a subject in three additional CCRB complaints and seven allegations, none of which have been substantiated.
 - Case 202305059 involves allegations of a failure to provide a business card and a vehicle search against PO Gonzalez and remains under investigation.
 - Case 202309493 involves allegations of a stop, frisk, and question against PO Gonzalez and remains under investigation.
- Det. Liriano has been a member of the NYPD for six years and has been a subject in eight additional CCRB complaints and 30 allegations, of which seven were substantiated and 12 remain under investigation.
 - Case 202008000 involved two substantiated allegations of failure to provide a business card against Det. Liriano. The Board recommended Command Discipline A, but the NYPD took no disciplinary action.
 - Case 202202749 involved a substantiated discourtesy allegation against Det. Liriano. The Board recommended Command Discipline A, but the NYPD took no disciplinary action.
 - § 87(2)(g)

-

able for mediation.

- _____

ons of Racial Pro

-
